

Professorship of Corporate Law
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Introduction to Business Law

Contract Law II + III

Summer Term 2026



Contract Law II + III

(1) Revision questions

(2) Rescission

Case 1a) Rescission due to error

Case 1b) Damage claim

Case 2a) Rescission due to deceit

Case 2b) Rescission due to duress (full text)

(3) Revocation

Case 3a) Revocation § 323 I BGB

Case 3b) Specification of additional period for performance

Case 4 Revocation § 324 BGB

(4) Withdrawal

Case 5

Case 1 – Facts

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Hotel owner (H) intends to buy 400 rolls of toilet paper for her hotel. She writes an email to wholesaler (W). Unfortunately, she is a little distracted while putting in the order. Her email states that she wants to buy 40,000 rolls of toilet paper. W is pleased, sends a quick confirmation email to H and rents a truck for the delivery.

When checking her sent emails a few hours later, H discovers her mistake. She gives W a call immediately and explains the situation. H makes it clear to W that she does not want 40,000 rolls of toilet paper.

Questions:

- a) Can H rescind her offer?
- b) Can W claim damages for the truck's rent?

Case 2a) – Facts

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Retailer (R) is negotiating with wholesaler (W) the delivery of a specific shoe model. R and W have done business with each other for more than a decade. R knows about W's long-standing policy "to always match the lowest price of other wholesalers".

While negotiating, W offers the shoes for 60€ a pair. It is W's view that this is a good offer, so she does not see much room for further negotiation. R replies that she has received another offer from W's competitor (C) for 55€ a pair. However, in fact, no such offer was ever made by C. R lets W know that she is considering to replace W as her supplier if she cannot match the price (of 55€). W, who has known R as trustworthy for years, has no reason to believe that R's story might not be true. Grudgingly, she agrees to lower the price due to her long-standing policy.

Question a): Did R and W conclude a contract at a price of 55€/pair?

Case 2b) – Facts

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W finds out about the fake offer. Furiously, she confronts R and tells her that she "will consider to not continue their business relationship in the future if R does not make up for this by buying the shoes for at least 65€ a pair". According to W, the additional five euros (compared to the original offer of 60€) serve to punish R. R is worried about losing W as a supplier and agrees to the contract for 65€.

After two weeks, R regrets her decision and thinks that it was inequitable of W to bully her into the new contract terms.

Question b): Did R and W conclude a contract?

Case 3 – Facts

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On Monday, S sells her watch to jeweleress J. The handover and transfer of ownership of the watch did not take place yet.

However, S's little brother (B) has taken the watch to Bavaria, where he is attending a two-week vacation camp. S therefore has no access to the watch. When S tells J about these circumstances, J says that she needs the watch by Thursday at the latest. After that, she can no longer resell the watch because the successor model is coming on the market.

On Thursday, S is still unable to bring the watch to J. J tells S that she is no longer interested in the contract.

Question a): Can J revoke the contract?

Question b): What if J had not given S three days to get the watch?

Case 4 – Facts

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Homeowner (H) hires craftsman (C) to renovate her house. It is agreed that C paints the living room and carries out minor repairs for a total price of 500€. The renovation work as such is completed so far on time and free of defects.

However, C is sloppy when it comes to taking protective measures for H's furniture. From carelessness paint drips on the unprotected carpet and causes permanent stains. Although H has pointed out to C that he must be more careful with her furniture, C breaks a rare and expensive vase.

H has enough and wants to “dissolve” the contract. C replies that this is a catastrophe for him with his financial situation. Besides, he has done the renovation properly so far.

Question: Can C claim the payment for the renovation?

Case 5 – Facts

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In order to study more efficiently, student S buys a laptop for 700€ from electronic retailer (E) on 1st May. To do this, S does not go to E's store, but buys the device from the comfort of his sofa in the online shop on E's website.

After a few days, S receives the laptop. When trying it out for the first time, S realizes that the laptop does not meet his needs. He wants a laptop with a larger screen.

On 11th May, S calls E and tells him on the phone that he wants to return the laptop and will bring it to him in the store.

Question: Did S effectively withdraw his declaration of intent?

Note: E properly informed S of his rights in the case of such a contract.